

HEADNOTE

“1. According to Rule 4.1 sentence 2 RoP, the parties are required to use the official forms available online. These forms also include the separate workflows within the CMS.

2. A prerequisite for a successful application for security for costs under Rule 158.1 RoP is a demonstration that the financial circumstances of the other party give reason to fear that any cost reimbursement claim cannot be met, or that despite sufficient financial means, enforcement of a costs decision appears to be impossible or encumbered with particular difficulties.”

COURT
Local Division in Munich

PATENT
EP3646825

KEYWORDS

official forms

separate workflows

PROCEEDINGS
Infringement action

A system comprising a prosthetic valve
and a delivery catheter

admissibility

security

Rule 4 Lodging of documents

SUMMARY

The Local Division in Munich ruled on an infringement action. The patent at issue relates to a system comprising a prosthetic valve and a delivery catheter. According to the headnotes of the decision, parties must submit their case filings using the official UPC forms available online, which incorporate the required workflows within the case management system. To succeed in requesting security for costs, a party must demonstrate either that the opponent's financial situation creates a genuine risk of non-payment or that enforcing a costs award would be practically impossible or subject to significant obstacles, regardless of the opponent's financial capacity.